

Breach of Duty (2)

Factors affecting the standard of care

Attributes of D

1. Children
2. Incapacity
3. Profession
4. Common practice

Balancing external factors

1. Probability of harm
2. Gravity of harm
3. Cost of precautions
4. Social utility of D's conduct
5. Context



Tort poll 3B(i)

LAW OF TORT



Taking into account D's
attributes |

1. Children



Mullin v Richards [1998] 1 WLR 1304

Facts:

- ❑ C and D were both 15-year-old schoolgirls.
- ❑ They were fencing with plastic rulers during a class when one of the rulers snapped and a fragment of plastic entered C's eye, causing her to lose all sight in that eye.

1. Children



Mullin v Richards [1998] 1 WLR 1304

“The test of foreseeability is an objective one; but the fact that the first defendant was at the time a 15-year-old schoolgirl is not irrelevant. The question for the judge is not whether the actions of the defendant were such as an ordinarily prudent and reasonable adult in the defendant’s situation would have realised gave rise to a risk of injury, it is whether an ordinarily prudent and reasonable 15-year-old schoolgirl in the defendant’s situation would have realised as much.”

(Hutchinson LJ)

1. Children



Mullin v Richards [1998] 1 WLR 1304

- “This was in truth nothing more than a schoolgirls’ game such as on the evidence was commonplace in this school” (Hutchinson LJ)
- “I would say that girls of 15 playing together may play as somewhat irresponsible girls of 15...” (Butler-Schloss LJ)

2. Incapacity



Mansfield v Weetabix [1998] 1 WLR 1263

- ❑ D crashed his lorry into C's shop as a result of a hypoglycemic state caused by a medical condition of which D was unaware.
- ❑ “the standard of care ... was that which is to be expected of a reasonably competent driver unaware that he is or may be suffering from a condition that impairs his ability to drive. To apply an objective standard ... would be to impose strict liability. But that is not the law.” (Leggat LJ)

2. Incapacity



Dunnage v Randall [2015] EWCA Civ 673

- ❑ D was schizophrenic, and set himself on fire, injuring C.
- ❑ “only defendants whose attack or medical incapacity has the effect of entirely eliminating any fault or responsibility for the injury can be excused.” (Vos LJ)
- ❑ “It would ... be open to a person who knows he has reduced abilities to take account of those abilities in what he does ... there will be hard cases ... where a person does not know what action to take to avoid injury to others. However, his liability is no doubt treated in law as the price for being able to move freely within society despite his schizophrenia.” (Arden LJ)

3. Profession



Issue 1: which special grouping if any ought D to be regarded as belonging to?

- Depends on how D is 'holding themselves out' to the world, and what C can reasonably expect of D
 - E.g. junior doctor same standard as experienced doctor (*Wilsher*)
 - E.g. unqualified legal advisor held to standard of professional lawyer (*Wright*)
 - E.g. ear-piercing in jewelry store – standard is reasonably competent jeweler, not surgeon (*Phillips*)

3. Profession



Issue 1: which special grouping if any ought D to be regarded as belonging to?

- ❑ “Where you get a situation which involves the use of some special skill or competence, then the test as to whether there has been negligence or not is not the test of the man on top of a Clapham omnibus, because he has not got this special skill. The test is the standard of the ordinary skilled man exercising and professing to have that special skill.”
(*Bolam*)
- ❑ The rule applies to any “profession or calling which requires special skill, knowledge or experience.” (*Gold v Haringey HA* (1987))

3. Profession



Issue 2: what standard applies?

- ❑ “The test is the standard of the ordinary skilled man exercising and professing to have that special skill.” (‘the *Bolam* test’)
- ❑ C must show that “the error was one which no reasonably competent member of the relevant profession would have made.” (Lady Hale, in *Moy v Pettman Smith*)

3. Profession



The limits of *Bolam*: in *Bolam* itself

- ❑ D does not breach their duty of care if they act “in accordance with a practice accepted as proper by a responsible body of medical opinion”.
- ❑ “a man is not negligent, if he is acting in accordance with such a practice, merely because there is a body of opinion who would take a contrary view.”
- ❑ “At the same time, that does not mean that a medical man can obstinately and pig-headedly carry on with some old technique if it has been proved to be contrary to what is really substantially the whole of informed medical opinion.”

(McNair J, *Bolam v Friern* [1957] 1 WLR 582 (QB))

3. Profession



The limits of *Bolam*: in *Bolitho*

- “if, in a rare case, it can be demonstrated that the professional opinion is not capable of withstanding logical analysis, the judge is entitled to hold that the body of opinion is not reasonable or responsible.”
- The court “has to be satisfied that the exponents of the body of opinion relied upon can demonstrate that such opinion has a logical basis.”

(*Bolitho v City and Hackney Health Authority* [1998] AC 232)

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

Facts:

- ❑ D doctor did not disclose to C, who was short and diabetic, the risks associated with a vaginal delivery.
- ❑ As a result, C suffered serious brain damage when the baby became stuck in the birth canal.
- ❑ C claimed that the risk ought to have been disclosed and she should have been offered a caesarean delivery.

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

Old law:

- ❑ In *Sidaway* the Court had held that a doctor's choice to provide, or not to provide information to patients was to be judged by reference to the *Bolam* test.
- ❑ So essentially, if a bunch of doctors thought patients shouldn't be given some information, that was fine!

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

Held:

- ❑ Fundamental distinction between: (a) doctors considering treatment options, and (b) doctors discussing treatments and alternatives with patients.
- ❑ *Bolam* applies to (a) but not to (b).

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

Held:

- When discussing treatments and alternatives with patients, doctors are “under a duty to take reasonable care to ensure that the patient is aware of any material risks involved in any recommended treatment, and of any reasonable alternative or variant treatments.”

(Lords Kerr & Reed, [87])

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

Held:

- ❑ “Material risk” means a reasonable person would attach significance to it, or the doctor ought reasonably to know this particular patient would.
- ❑ Exception where patients cannot be told of risk because it would be seriously detrimental to their health.

3. Profession



The limits of *Bolam*: in *Montgomery* [2015] UKSC 11

“Whatever Dr McLellan may have had in mind, this does not look like a purely medical judgment. It looks like a judgment that vaginal delivery is in some way morally preferable to a caesarean section: so much so that it justifies depriving the pregnant woman of the information needed for her to make a free choice in the matter. Giving birth vaginally is indeed a unique and wonderful experience, but it has not been suggested that it inevitably leads to a closer and better relationship between mother and child than does a caesarean section.”

(Lady Hale, [114])

4. Common Practice



The general rule:

- ❑ Industry guidelines and general practice can act as good evidence of reasonable care
- ❑ D does not normally breach its duty of care where it acts in accordance with recognised and established industry practice
- ❑ BUT ... not necessarily decisive

4. Common Practice



Baker v Quantum Clothing [2011] UKSC 17

“two qualifications on the extent to which an employer can rely upon a recognised and established practice to exonerate itself from liability in negligence for failing to take further steps: one where the practice is “clearly bad”, the other where, in the light of developing knowledge about the risks involved in some location or operation, a particular employer has acquired “greater than average knowledge of the risks”.”

(Lord Mance, [21])



Tort Poll 3B(ii)

LAW OF TORT

A subjective element to the reasonable person?



Various ways the law uses some 'subjective element'. E.g.:

- ❑ Customary standards: “the law helps itself to the customary standards of a specific trade or profession, such as plumbing or medicine. To determine what those standards are, expert evidence is called ...”
- ❑ “Sometimes ... the law converts the reasonable person into the reasonable child ... But what does this mean? Does it mean that being a child is a role that comes with its own specialized standards of justification, like that of electrician, public authority, or car-driver? Or does it mean that children, although we might wish that they would live up to adult standards of justification, are often incapable of doing so, and therefore get a special dispensation in the form of a limited personalization of the reasonable person, now endowed with a measure of childishness?”

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